

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/01/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008156

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: WELLS FARGO BANK, N.A.	
vs.	
DEFENDANT: YULIYA A. GHOSH, AN INDIVIDUAL	

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Plaintiff Wells Fargo Bank, N.A.’s (“Plaintiff”) Motion for Summary Judgment against defendant Yuliya A Ghosh (“Defendant”) is GRANTED.

LEGAL STANDARD

A party may move for summary judgment “if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) “[I]f all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law,” the moving party will be entitled to summary judgment. (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

“Where a plaintiff moves for summary judgment, the plaintiff has the burden of showing there is no defense to a cause of action by proving each element of the cause of action. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 564-565.) Once the plaintiff meets this initial burden, the burden shifts to the defendant to show a triable issue of material fact exists as to that cause of action or a defense thereto. (*Id.*, at 564.) To satisfy this burden, the opposing party must present admissible evidence and may not rely upon the allegations or denials of its pleading. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most

favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Med. Ctr.* (2008) 159 Cal.App.4th 463, 467, as modified (Jan. 24, 2008).)

DISCUSSION

With this Motion, Plaintiff seeks Summary Judgment of both causes of action in the complaint: (1) breach of written contract and (2) breach of contract (implied in fact).

The elements of a cause of action for breach of contract are: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff. (*Coles v. Glaser* (2016) 2 Cal.App.5th 384, 391, internal citations omitted.) If the action is based on an alleged breach of a written contract, the complaint may set out the terms in the body of the complaint, attach a copy of the written, or plaintiff may plead the legal effect of the contract rather than its precise language. (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 199.)

A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct. (*Aton Ctr., Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230. Internal citations omitted.) Both types of contracts are identical in that they require a meeting of minds or an agreement. (*Ibid.*) Thus, it is evident that both the express contract and contract implied in fact are founded upon an ascertained agreement or, in other words, are consensual in nature, the substantial difference being in the mode of proof by which they are established. (*Ibid.*)

Plaintiff's Facts in Support of Motion

In support of its Motion, Plaintiff's Separate Statement sets forth the following facts:

Defendant applied for and was issued a Wells Fargo credit card (“Subject Account”) ending in 3337. (Plaintiff's Undisputed Material Fact (“PUMF”) Nos. 1, 15.) Plaintiff sent Defendant the credit card along with the written Customer Agreement associated with the credit card. (PUMF Nos. 2, 16.) Pursuant to the terms of the written Customer Agreement, Defendant accepted the terms of the written agreement by using the Wells Fargo Credit Card. (PUMF Nos. 3, 17.)

Pursuant to the terms of the Customer Agreement associated with the card, Plaintiff would extend credit to Defendant whereby Defendant could charge goods, services, or obtain cash advances on the credit line. (PUMF Nos. 4, 18.) In exchange, Defendant was to repay the principal amount lent plus applicable interest and finance charges. (PUMF Nos. 5, 19.) In accordance with the Customer Agreement, Defendant used the account, and made payments, charges, and incurred a balance thereon. (PUMF Nos. 6, 20.) Plaintiff sent Defendant monthly statements of the Subject Account each and every billing period. (PUMF Nos. 7, 21.) The address Plaintiff mailed the statements to was: Yuliya A Ghosh 116 Neds Way, Tiburon, CA 94920-1536. (*Id.*, see also Ross Decl., ¶ 4-7, Ex. 2, (mailing address listed bottom of page 1 of each statement).) The statements of the account reflected all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period.

(PUMF Nos. 8, 22.) There is no record of any unresolved disputes on the account. (PUMF Nos. 9, 23.) Furthermore, there is no record of any active lawsuits against Wells Fargo Bank, N.A. for unresolved disputes on this credit card account. (PUMF Nos. 10, 24.) Defendant's last payment on the Subject Account was on July 21, 2024. (PUMF Nos. 11, 25.) Thereafter, no further payments were made by the Defendant, and therefore, pursuant to the terms of the Customer Agreement, Defendant was in default. (PUMF Nos. 12, 26.)

The balance due on Defendant's Subject Account is \$7,086.12. (PUMF Nos. 13, 27.) As a result of Defendant's unpaid balance, Plaintiff has been damaged in the sum of \$7,086.12. (PUMF Nos. 14, 28.)

With these facts, the Court finds Plaintiff has successfully met its burden on summary judgment by proving each element of each cause of action. The burden therefore shifts to Defendant to demonstrate a triable issue of material fact with respect to the elements of the causes of action or a defense thereto.

In Opposition, Defendant asserts there are multiple triable issues surrounding the nature and existence of an alleged contract, the terms of said contract, the enforceability of said terms, and the amount of the alleged damages. However, Defendant failed to dispute any of Plaintiff's facts in the Opposition Separate Statement. The Court further notes that no Objections to Evidence nor a Motion to Compel Arbitration were separately filed. To the extent Defendant attempted to include either in the Opposition Memorandum of Points and Authorities, those requests are not properly before this Court. (California Rules of Court, rule 3.1350, subds. (f)(1)-(2), (h), rule 3.1354, subd. (b) [requiring evidentiary objections to be separately served and filed]; *Hodjat v. State Farm Mut. Auto. Ins. Co.* (2012) 211 Cal.App.4th 1, 9 [upholding the trial court's refusal to rule on objections not filed in a separate document]; See also Code Civ. Proc., § 1281.2.)

The Court then considers whether the Additional Material Facts submitted in Defendant's Separate Statement ("AMF") create a triable issue of material fact as to the elements of the causes of action or establish a defense to Plaintiff's claims. The Court finds that they do not. Each AMF cites to Defendant's Declaration as the supporting evidence for the fact. No such Declaration was filed with the Court. Accordingly, none of the AMF are supported as required by competent evidence.

For these reasons, the Motion for Summary Judgment is GRANTED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHnzEGafG.1>

Meeting ID: 161 548 7764
Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 0701//26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008925

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JEAN W. BUSH, ET AL

vs.

DEFENDANT: MARIAN CHRISTINE
BRODIGAN, ET AL

NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant Marian Christine Brodigan's ("Defendant" or "Brodigan") Special Motion to Strike pursuant to Code of Civil Procedure section 425.16 ("anti-SLAPP Motion") is GRANTED. Attorneys' fees and costs are awarded to Defendant in the amount of \$15,060.

Brodigan's Demurrer to the Complaint is SUSTAINED without leave to amend.

BACKGROUND

Plaintiff Jean W. Bush, individually, and as trustee of The Jean W. Bush Trust Dated June 28, 1988, as Amended and Restated, as trustee of The Gerald Bush Family Trust Dated January 1, 2002, as trustee of The Gerald Bush Exempt Trust, and as trustee of The Gerald Bush Non-Exempt Trust ("Plaintiff" or "Bush") filed this action containing a sole cause of action for rescission of contract on January 26, 2026. The contract at issue is a written settlement agreement which was reached at the conclusion of an in-person mediation conducted by Stephen H. Sulmeyer J.D., Ph.D. of JAMS in San Francisco on December 10, 2025. The mediation and settlement arose from claims made by Defendant stemming from an alleged sexual assault committed by Paul Guerin ("Guerin"), the husband of Plaintiff.

Allegations in Complaint

The Complaint seeks relief under Civil Code section 1689 which provides: "A party to a contract may rescind the contract in the following cases: If the consent of the party rescinding, or of any party jointly contracting with him, was given by mistake, or obtained through duress, menace, fraud, or undue influence, exercised by or with the connivance of the party as to whom he rescinds, or of any other party to the contract jointly interested with such party." (Civ. Code, § 1689, subd. (b)(1).) A party may also rescind for failure of consideration if the consideration

for the obligation of the rescinding party fails, in whole or in part, through the fault of the party as to whom he rescinds, if the consideration for the obligation of the rescinding party becomes entirely void from any cause, or if the consideration for the obligation of the rescinding party, before it is rendered to him, fails in a material respect from any cause. (*Id.*, at subd. (b)(2).)

The Complaint alleges as follows:

After the sexual assault allegations, criminal charges were filed against Guerin, who pleaded guilty to criminal charges and served a sentence in the Marin County Jail. (Compl., ¶ 11.) “The fact of the incident being alleged and the events that followed was extremely upsetting to Plaintiff who, after she learned of the alleged incident, began to suffer from extreme and severe stress, humiliation, anxiety and emotional distress. This extreme and severe stress, humiliation, anxiety and emotional distress manifested itself in numerous ways, both physically and mentally, including a substantial weight loss, and included the inability to think clearly and rationally and affected her ability to conduct her affairs (collectively ‘Bush’s State of Mind’).” (*Id.*, ¶ 12.) On or about July 14, 2025, over a year after the alleged sexual assault, Bush and Guerin received a letter dated July 10, 2025, asserting a one million dollar (\$1,000,000) civil claim against them by Brodigan. (*Id.*, ¶ 13.) In pertinent part, the letter accused Bush of “aiding and abetting” Guerin’s alleged acts of April 11, 2024. (*Ibid.*) Receipt of this letter, and the assertion of the claim against Plaintiff, multiplied and exacerbated Plaintiff’s already extreme and severe stress, humiliation, anxiety and emotional distress. (*Ibid.*) Plaintiff was not thinking clearly and was mentally very vulnerable, including to undue influence. (*Ibid.*) There is not, and has never been, any basis, in fact or in law, for any claim, of any type or nature, by Brodigan against Bush. (*Id.*, ¶ 14.) Bush did not have, and has never had, any liability or responsibility for Brodigan’s claims and allegations against Guerin, and neither aided nor abetted Guerin’s acts of April 11, 2024. (*Ibid.*) The Complaint also alleges Plaintiff was not represented by counsel (*id.*, ¶ 17), that she did not understand the legal issues regarding her alleged responsibility (*id.*, ¶ 18), and that she signed the settlement agreement under duress, mistake and undue influence (*id.*, ¶ 19). Plaintiff also contends that she signed the settlement agreement on behalf of Trusts for which she did not have authority to sign. (*Id.*, ¶ 20.) The Complaint alleges Plaintiff’s mistake was unilateral, as she did not understand that she could decline to be a party to the settlement agreement. (*Id.*, ¶ 21.) However, it also alleges that the settlement agreement should be set aside and rescinded because “the signature of Plaintiff was procured as a result of Plaintiff being the target of financial elder abuse” and “[h]ad Plaintiff been in her right mind at the time she was presented with the [settlement agreement], she would not have executed [it].” (*Id.*, ¶ 24.) “[G]iven that Bush had no responsibility for Brodigan’s claims and allegations against Guerin, Bush received no benefits under the Settlement Agreement; there was no consideration given as to Bush under the Settlement Agreement or, alternatively, there was a failure of consideration.” (*Id.*, ¶ 23.)

Motions Before the Court

On April 1, 2026, Brodigan filed the anti-SLAPP Motion and Demurrer presently before the Court.

With the anti-SLAPP Defendant seeks to strike the allegations in the Complaint for rescission, as set forth at paragraphs 13-25. Defendant also seeks an order awarding attorneys’

fees and costs against Plaintiff in the amount of \$27,425 incurred by Defendant in drafting this Motion, in addition to \$20,080 in fees and costs incurred in drafting the reply. The Motion is made on the grounds that the allegations as set forth at paragraphs 13-25 arise from acts in furtherance of Defendant's right to petition and free speech; conduct in furtherance of the exercise of the constitutional right of petition and speech; and, that such rights will be chilled if the allegations are allowed to stand.

The Demurrer asserts that the claim for rescission fails to allege facts sufficient to state a cause of action.

The Court will address each Motion in turn.

ANTI-SLAPP – LEGAL STANDARD

The anti-SLAPP statute provides that “[a] cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech . . . shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16(b)(1).)

A cause of action will be stricken under the anti-SLAPP statute if both parts of a two-prong analysis show that the claim arises from protected activity and lacks minimal merit. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 819-820.) In the first prong, the defendant meets its initial burden by demonstrating that the challenged cause of action is one “arising from” protected activity. If the defendant makes this showing, the burden shifts to the plaintiff for the second prong, requiring the plaintiff to establish a “probability” that he will prevail on the claim. (*Id.*; Code Civ. Proc., § 425.16(b).) In order to establish the requisite probability of prevailing, the plaintiff need only have “stated and substantiated a legally sufficient claim.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88–89.) Put another way, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. (*Ibid.*)

“In determining whether a plaintiff meets its responsive burden under the second prong, the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based. In doing so, [t]he court does not weigh evidence or resolve conflicting factual claims... It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law. Courts have described this procedure as a motion for summary judgment in reverse. Rather than requiring the *defendant* to defeat the plaintiff’s pleading by showing it is legally or factually meritless, the motion requires the *plaintiff* to demonstrate that he possesses a legally sufficient claim which is substantiated, that is, supported by competent, admissible evidence. Consistent with this summary-judgment-like procedure, the court must draw all reasonable inferences from the evidence in favor of [the party opposing the anti-SLAPP motion].” (*Area 55, LLC v. Tomasevic, LLP* (2021) 61 Cal.App.5th 136, 151-152 [citations and internal quotations omitted].)

ANTI-SLAPP – DISCUSSION

Defendant argues that the communications at issue in this case (a demand letter and negotiations during mediation) represent constitutionally protected speech and that the Complaint constitutes an attack on Brodigan's petition and speech rights which falls squarely within the ambit of California's anti-SLAPP suit statute. Moreover, Defendant contends that the mediation is protected by statutory confidentiality provisions which govern mediation.

First Prong – Recission Cause of Action “Arises From” Protected Activity

The statutory phrase “cause of action ... arising from” means simply that the defendant's *act* underlying the plaintiff's cause of action must *itself* have been an act in furtherance of the right of petition or free speech. (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78 (*City of Cotati*).) Allegations of protected activity that are “‘merely incidental’ or ‘collateral’” or that “‘merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute.” (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 394 (*Baral*).) “In deciding whether the ‘arising from’ requirement is met, a court considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” (*City of Cotati, supra*, at p. 79, quoting § 425.16, subd. (b).)

Section 425.16 protects any conduct in furtherance of the exercise of the constitutional right of petition. (*Id.*, subd. (e)(4).) Prelitigation communications may qualify for this protection so long as they concern the subject of the dispute and are made in anticipation of litigation contemplated in good faith and under serious consideration (*Flickinger v. Finwall* (2022) 85 Cal.App.5th 822, 832–33, Internal citations omitted.) However, the “court must ‘distinguish between (1) speech or petitioning activity that is mere *evidence* related to liability and (2) liability that is *based on* speech or petitioning activity. Prelitigation communications ... may provide evidentiary support for the complaint without being a basis of liability.’ [Citation.] ‘[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.’ ” (*Area 51 Prods., Inc., supra*, 20 Cal.App.5th at pp. 594–95. Internal citations omitted.)

Guidance provided by our Supreme Court is that, in teasing out whether we are dealing with protected conduct under section 425.16, subdivision (b), “courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.” (*Ibid.*)

In this case, Plaintiff counters that the allegations regarding the demand letter and mediation are not protected because they are “merely evidence” and not the basis for liability. This Court disagrees.

Plaintiff is claiming the criminal charges against her husband caused her such distress that it “included the inability to think clearly and rationally and affected her ability to conduct her affairs.” (*Id.*, ¶ 12.) She further claims that the civil claim demand letter she received exacerbated this distress and her state of mind, including rendering her unable to think clearly and mentally vulnerable. (*Id.*, ¶ 13.) She claims that the scheduling of the mediation itself created further stress, anxiety and emotional distress and exacerbated the fragility of her state of mind even before the Mediation began. (*Id.*, ¶ 18.) She alleges the settlement agreement should

be rescinded because her signature was procured as a result of her being a target of financial elder abuse, which, had she been in her right mind, she would not have executed. (*Id.*, ¶ 24.) Specifically, she alleges that the settlement agreement was executed at the end of a long mediation day that “put enormous stress and anxiety” on her while she was suffering from extreme mental vulnerability. (*Id.*, ¶ 21.) The resultant stress, anxiety and extreme mental vulnerability caused Plaintiff to act against her best interests and under circumstances of duress and undue influence. (*Ibid.*)

She specifically asserts that the settlement agreement should be rescinded due to duress, mistake and undue influence. (*Id.*, ¶ 19.) The basis for these claims are the stress caused by the demand letter and mediation, and the only activities described supporting the duress, mistake, and undue influence allegations are the protected actions. Far from being collateral or mere evidentiary support, they form the elements of the claim for rescission. The claim is therefore based on protected petitioning activity and Defendant has satisfied the first prong of the anti-SLAPP analysis. (*Drell v. Cohen* (2014) 232 Cal.App.4th 24, 29.)

Second Prong – Plaintiff Does Not Show the Complaint has Minimal Merit

A court's second step ‘inquiry is limited to whether the [opposing party] has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. [The court] ... evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law.’ ” (*Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP* (2017) 18 Cal.App.5th 95, 113.) The plaintiff must demonstrate that the complaint is both legally sufficient and supported with admissible evidence. (*Ibid.* Internal citations omitted.)

Here the Complaint seeks rescission of the parties’ prior settlement agreement due to undue influence, duress, and mistake. (Compl., ¶ 19.)

Undue Influence

The doctrine of “undue influence” can be used to rescind an agreement under California law. (Civ. Code, § 1689, subd. (b)(1).) By statute, undue influence results from three scenarios:

- (1) In the use, by one in whom a confidence is reposed by another, or who holds a real or apparent authority over him, of such confidence or authority for the purpose of obtaining an unfair advantage over him;
- (2) In taking an unfair advantage of another's weakness of mind; or
- (3) In taking a grossly oppressive and unfair advantage of another's necessities or distress.

(*Martinez-Gonzalez v. Elkhorn Packing Co. LLC* (9th Cir. 2022) 25 F.4th 613, 625–26, citing Civ. Code, § 1575.) Undue influence, however, “cannot be used as a pretext to avoid bad bargains or escape from bargains which refuse to come up to expectations.” (*Id.*, citing *Odorizzi v. Bloomfield Sch. Dist.* (1996) 246 Cal.App.2d 123, 132.)

Essentially, undue influence involves “the use of excessive pressure to persuade one vulnerable to such pressure.” (*Ibid.*) The doctrine consists of two elements: (1) “undue susceptibility in the servient person” and (2) “excessive pressure by the dominating person.” (*Id.*; see also *Das v. Bank of Am.* (2010) 186 Cal.App.4th 727, 743 [undue influence requires one party to “t[ake] some advantage of the mental weakness or incapacity of the other party”]). The two elements act in balance. (*Id.*) If either exists to a large degree, the second need not be so great. (*Id.*)

Here, the Court is not convinced that Plaintiff has made a prima facie factual showing of excessive pressure by Defendant. There are no facts provided by Plaintiff that Defendant, the mediator, her husband, or Attorney Cantor pressured her into signing the settlement agreement.

Even if this Court could construe the allegations in the Complaint and affidavits to sufficiently show undue influence, Plaintiff’s claim for rescission due to undue influence still lacks minimal merit because the allegations that form the basis for the claim are protected by the litigation privilege. Communications preparatory to or in anticipation of the bringing of an action are within the protection of the litigation privilege of Civil Code section 47, subdivision (b). (*Bonni v. St. Joseph Health Sys.* (2022) 83 Cal.App.5th 288, 305.) A plaintiff cannot establish a probability of prevailing if the litigation privilege precludes a defendant’s liability on the claims. (*Osborne v. Pleasanton Automotive Co., LP* (2024) 106 Cal.App.5th 361, 382; see also *Flatley v. Mauro* (2006) 39 Cal.4th 299, 323 [litigation privilege relevant to second step of anti-SLAPP analysis where it presents substantive defense].) In this case, the only actions alleged that could conceivably amount to “pressure” are the sending of the demand letter and the subsequent participation in the mediation.

Although Plaintiff briefly attempts to argue that the litigation privilege does not apply because there was no basis for her potential liability, a party resisting the assertion of the litigation privilege must do more than simply assert that litigation to which the statement is related is without merit, and therefore the proponent of the litigation could not in good faith have believed it had a legally viable claim. (*Bailey v. Brewer* (2011) 197 Cal.App.4th 781, 790.) “To adopt such an interpretation would virtually eradicate the litigation privilege for all but the most clearly meritorious claims.” (*Ibid.*)

Plaintiff’s contention that the litigation privilege is inapplicable to her request for rescission on the ground that it is related to a contract also fails. The privilege applies to contract claims when it furthers the privilege’s underlying policies. (See, e.g., *McNair v. City and County of San Francisco* (2016) 5 Cal.App.5th 1154, 1169–1170.) A rule rejecting the application of the privilege to requests to rescind a settlement agreement would contravene these policies by impeding open settlement discussions and discouraging settlements. (See, e.g., *Flickinger v. Finwall*, *supra*, 85 Cal.App.5th at p. 838.)

Moreover, the Court is required to interpret broadly both the anti-SLAPP statute and the litigation privilege. (See § 425.16, subd. (a); *Action Apartment Assn., Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241.) In doing so, the Court must conclude that Plaintiff failed to demonstrate a probability that she will prevail on her claim for rescission due to undue influence.

Duress

“Duress” as ground for extinguishment of contract by rescission envisions some unlawful action by a party by which one’s consent is obtained through fear. (*Keithley v. Civil Service Bd. of City of Oakland* (1970) 11 Cal.App.3d 443, 450.)

Per statute, duress consists of any of the following:

- (a) Unlawful confinement of the person of the party, or of the spouse of such party, or of an ancestor, descendant, or adopted child of such party or spouse.
- (b) Unlawful detention of the property of any such person.
- (c) Confinement of such person, lawful in form, but fraudulently obtained, or fraudulently made unjustly harassing or oppressive.

(Civ. Code, § 1569.)

Here there is no evidence that Defendant or any of the other participants in the mediation acted unlawfully. Plaintiff does not assert she was unlawfully confined. Her claim that she was attending the mediation for moral support only and did not realize she did not have to sign the settlement agreement does not reasonably suggest that she was not free to leave or that force would be used on her if she attempted to leave.

Moreover, a threat to do what party making threat has legal right to do does not constitute duress or coercion. (*Marshall v. Packard-Bell Co.* (1951) 106 Cal.App.2d 770, 774.) Even if the Complaint and affidavits could be said to state a prima facie claim for duress, the only basis for this claim would be the sending of the demand letter and participation in the mediation. These allegations would be protected by the litigation privilege as discussed above.

For these reasons, Plaintiff has failed to show her claim for rescission based on duress has minimal merit.

Mistake

A party may rescind a contract if his or her consent was given by mistake. (Civ. Code, § 1689, subd. (b)(1).) “A factual mistake by one party to a contract, or unilateral mistake, affords a ground for rescission in some circumstances.” (*Donovan v. RRL Corp.* (2001) 26 Cal.4th 261, 278, as modified Sept. 12, 2001 (*Donovan*).) Under Civil Code section 1577, a mistake of fact is defined as “a mistake, not caused by the neglect of a legal duty on the part of the person making the mistake, and consisting of: 1. An unconscious ignorance or forgetfulness of a fact past or present, material to the contract; or, 2. Belief in the present existence of a thing material to the contract, which does not exist, or in the past existence of such a thing, which has not existed.” (*Mosher v. Mayacamas Corp.* (1989) 215 Cal.App.3d 1, 4.)

To establish a unilateral mistake of fact sufficient for the rescission of a contract, the defendant must establish: “(1) the defendant made a mistake regarding a basic assumption upon

which the defendant made the contract; (2) the mistake has a material effect upon the agreed exchange of performances that is adverse to the defendant; (3) the defendant does not bear the risk of the mistake; and (4) the effect of the mistake is such that enforcement of the contract would be unconscionable.” (*Donovan, supra*, 26 Cal.4th at p. 282; *Greif v. Sanin* (2022) 74 Cal.App.5th 412, 438.)

However, a plaintiff's subjective misinterpretation of the terms of the contract constituted is, at most, a unilateral mistake of law. (*Donovan, supra*, at p. 279.) Relief for unilateral mistake of law is authorized only where one party knows of, does not correct, and takes advantage or enjoys the benefit of another party's mistake. (*Id.*, citing *Hedging Concepts, Inc. v. First Alliance Mortgage Co.* (1996) 41 Cal.App.4th 1410, 1418–1422.)

Here, the mistakes alleged by Plaintiff, that she 1. did not understand the legal issues regarding her alleged responsibility for the claims made in the demand letter (Compl., ¶ 18); 2. signed the settlement agreement on behalf of Trusts for which she did not have authority to sign (*id.*, ¶ 20); and 3. did not understand that she could decline to be a party to the settlement agreement (*id.*, ¶ 21), are all mistakes of law. Plaintiff has not made a prima facie showing that any other party knew of, did not correct, and took advantage of her mistaken beliefs. Even if she had, the allegations would be protected by the litigation privilege as discussed above.

For these reasons, Plaintiff fails to satisfy her burden on prong 2 of the anti-SLAPP analysis for her claim for rescission due to mistake.

Failure of Consideration

The Complaint also alleges that “given that Bush had no responsibility for Brodigan’s claims and allegations against Guerin, Bush received no benefits under the Settlement Agreement; there was no consideration given as to Bush under the Settlement Agreement or, alternatively, there was a failure of consideration.” (Compl., ¶ 23.)

A party may rescind for failure of consideration if the consideration for the obligation of the rescinding party fails, in whole or in part, through the fault of the party as to whom he rescinds, if the consideration for the obligation of the rescinding party becomes entirely void from any cause, or if the consideration for the obligation of the rescinding party, before it is rendered to him, fails in a material respect from any cause. (Civ. Code, § 1689, subd. (b)(2).) Failure of consideration is the failure to execute a promise, the performance of which has been exchanged for performance by the other party. (*Taliaferro v. Davis* (1963) 216 Cal.App.2d 398, 410–11.) Accordingly, the rationale of the cases dealing with failure of consideration is that where the consideration fails in whole or in part through the fault of a party whose duty it is to render it, the other party may invoke such failure as a basis for rescinding or terminating the contract, provided the failure or refusal to perform constitutes a breach in such an essential particular as to justify rescission or termination. (*Ibid.*)

Here, Plaintiff is not asserting type of failure of consideration identified in Civil Code section 1689. Rather, Plaintiff is using the “failure of consideration” language but merely re-describing the alleged mistake of law – that she did not understand the legal issues regarding her alleged responsibility for the claims made in the demand letter. (Compl., ¶ 18.) For the reasons

discussed above, Plaintiff has not made a prima facie showing that any other party knew of, did not correct, and took advantage of her mistaken beliefs. Even if she had, the allegations would be protected by the litigation privilege.

Finally, “[a] compromise and release is not to be confused with the law of contract, in which equivalents are exchanged, for the very essence of a release is to avoid litigation, even at the expense of strict right.” (*Village Northridge Homeowners Assn. v. State Farm Fire & Cas. Co.* (2010) 50 Cal.4th 913, 925. Internal citations omitted.)

Here, Plaintiff has not made a prima facie showing that consideration failed, even if her belief that she had no potential liability proves true. Settlements do not only value the potential amount of liability, but also value avoiding ongoing or potential litigation. Plaintiff has not provided any evidence that this contemplated benefit did not exist, or to the extent it was present, lacked all value.

For these reasons, the anti-SLAPP Motion is GRANTED and paragraphs 13-25 are stricken from the Complaint.

Attorney’s Fees

The anti-SLAPP statute reflects the Legislature's strong preference for awarding attorney fees to successful defendants. (*City of Colton, supra*, 206 Cal.App.4th at p. 782.) The prevailing defendant seeking fees and costs bears the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates. (*Ibid.*) To that end, the court may require a defendant to produce records sufficient to provide a proper basis for determining how much time was spent on particular claims. (*Ibid.*) The court also may properly reduce compensation on account of any failure to maintain appropriate time records. (*Ibid.*) The evidence should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended. (*Ibid.*) However, the absence of time records and billing statements does not necessarily deprive a trial court of substantial evidence to support an award. (*Ibid.*) The verified time statements of an attorney, as an officer of the court, are entitled to credence in the absence of a clear indication the records are erroneous. (*Ibid.*)

Here, Attorney Miller submits that he spent 11.4 hours (at a rate of \$800/hr) in connection with the preparation of this motion, that Attorney Fitzgerald of his office spent 22.1 hours (at \$800/hr) in connection with the preparation of the same, and that Michael A. Pascoe of his office spent 3 hours (at a rate of \$225/hour). (Miller Decl., ¶ 8.) The filing fee for the motion was \$60.00. (*Ibid.*) Attorney Miller also declares that he spent 6.4 hours (at a rate of \$800/hr) in connection with the preparation of this reply brief and that Attorney Fitzgerald spent an additional 18.7 hours (at \$800/hr) in connection with the same. (See Miller Supp. Decl., ¶ 3.)

In total, Defendant seeks \$47,505 in fees in costs in connection with this Motion. The Court finds that the time expended on the Motion appears excessive. The Court reduces the amount of fees to \$15,000 and awards \$60 in costs, for a total award of \$15,060.

DEMURRER – LEGAL STANDARD

The function of a demurrer is to test the legal sufficiency of the challenged pleading. (*Hernandez v. City of Pomona* (1996) 49 Cal.App.4th 1492, 1497.) As a general rule, in testing a pleading against a demurrer, the facts alleged in the pleading are deemed to be true, however improbable they may be. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) The court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Calif.* (1990) 51 Cal.3d 120, 125.)

In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The face of the complaint includes matters shown in exhibits attached to the complaint and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 317.) The onus is on the plaintiff to articulate the “specifi[c] ways” to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend “only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.” (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.)

DEMURRER – DISCUSSION

Defendant demurs on the ground that the sole cause of action (rescission) does not allege facts sufficient to state a cause of action for rescission based upon undue influence, duress, and mistake. (Code Civ. Proc., § 430.10(e).) In addition, the first cause of action does not allege facts sufficient to state a cause of action for rescission, because the claim is based upon acts and conduct that are protected speech and are confidential, subject to the mediation privilege.

The Complaint seeks relief under Civil Code section 1689 which provides: “A party to a contract may rescind the contract in the following cases: If the consent of the party rescinding, or of any party jointly contracting with him, was given by mistake, or obtained through duress, menace, fraud, or undue influence, exercised by or with the connivance of the party as to whom he rescinds, or of any other party to the contract jointly interested with such party.” (Civ. Code, § 1689, subd. (b)(1).) A party may also rescind for failure of consideration if the consideration for the obligation of the rescinding party fails, in whole or in part, through the fault of the party as to whom he rescinds, if the consideration for the obligation of the rescinding party becomes entirely void from any cause, or if the consideration for the obligation of the rescinding party, before it is rendered to him, fails in a material respect from any cause. (*Id.*, at subd. (b)(2).)

In light of the above ruling striking paragraphs 13-25 of the Complaint, the Court agrees that the Complaint fails to allege facts sufficient to state a cause of action for rescission. Plaintiff has not demonstrated how this defect could be cured by amendment. The Demurrer is therefore SUSTAINED without leave to amend.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/01/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009672

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: ELIZABETH A. FROHLICH

vs.

DEFENDANT: ROBERTSON, ANSCHUTZ,
SCHNEID & CRANE LLP, ET AL

NATURE OF PROCEEDINGS: ORDER – SHOW CAUSE – PRELIMINARY INJUNCTION

RULING

Plaintiff's motion for a preliminary injunction is granted.

Defendants' unopposed request for judicial notice is granted.

Background

Plaintiff Elizabeth Frohlich seeks to enjoin a foreclosure sale of her property located at 328 Knight Dr., San Rafael. Her complaint filed on April 2, 2026 names Robertson, Anschutz, Schneid & Crane, LLC ("RASC"), the current Trustee for the Deed of Trust on Plaintiff's mortgage and foreclosure counsel, Select Portfolio Servicing, Inc. ("SPS"), the current servicer for Plaintiff's mortgage, and The Bank of New York Mellon Trust Company, N.A. ("the Trust"), which currently owns Plaintiff's mortgage. It includes the following causes of action: (1) fraud; (2) wrongful foreclosure; (3) violation of the Homeowners' Bill of Rights (HBOR); (4) violation of Business and Professions Code section 17200 et seq.; (5) negligence; (6) intentional infliction of emotional distress; and (7) declaratory relief. SPS and the Trust oppose Plaintiff's motion for preliminary injunction.

Legal Standard

"When ruling on a motion for preliminary injunction, 'trial courts should evaluate two interrelated factors when deciding whether or not to issue a preliminary injunction. The first is the likelihood that the plaintiff will prevail on the merits at trial. The second is the interim harm that the plaintiff is likely to sustain if the injunction were denied as compared to the harm that the defendant is likely to suffer if the preliminary injunction were issued.'" (*Anderson v. County of Santa Barbara* (2023) 94 Cal.App.5th 554, 567-568, citations omitted.) "The trial court determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the